

25CHCV04348 25CHCV04348

County: los-angeles

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Case Number: 25CHCV04348 Hearing Date: September 17, 2026 Dept: F47

Dept. F47

Date: 9/17/26

Case #25CHCV04348

MOTION FOR
DEFAULT JUDGMENT

Motion filed on 5/12/26.

MOVING PARTY: Plaintiff State National Companies, Inc.

RESPONDING PARTY: Defendant Alejandro Lezama Macias dba
Macias Kustom Autobody

NOTICE: ok

RELIEF REQUESTED: Entry of Default Judgment
against Defendant Alejandro Lezama Macias dba Macias Kustom Autobody.

RULING: The motion is denied without
prejudice.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff State National
Companies, Inc. (Plaintiff) claim that Defendant Alejandro Lezama Macias dba

Macias Kustom Autobody (Defendant) has been unlawfully withholding possession of a 2018 Chevrolet Camaro (the Vehicle), with an approximate value of \$51,000.00, from Plaintiff, the legal owner and lienholder of the Vehicle. (Complaint ¶¶1, 8-9; Iqbal Decl. ¶¶2-4; Cleff Decl. ¶¶2-4)

Plaintiff alleges that Defendant came into possession of the Vehicle sometime on or before 5/13/25 when Defendant sent a written demand to Plaintiff seeking payment of \$32,530.00 for towing and storage, with charges accruing at \$250.00 per day. (Complaint ¶10; Iqbal Decl. ¶4; Cleff Decl. ¶5).

On 9/26/25, Plaintiff personally served Defendant with a letter (the Letter) which demanded, within 10 days: (a) an itemized breakdown of all charges; (b) a list of all repairs performed with dates and costs; and (c) evidence of compliance with California Vehicle Code 10652.5. (Complaint ¶¶12-14; Iqbal Decl. ¶5). Defendant never responded. (Complaint ¶15; Iqbal Decl. ¶7).

On 10/10/25, the California Department of Motor Vehicles issued a Lien Sale Notice (the Notice) to Plaintiff reflecting Defendant's claimed repair costs of \$2,500.00, a daily storage rate of \$250.00, and a current storage balance of \$30,000.00. (Complaint ¶¶16-17; Iqbal Decl. ¶¶ 6, 8). The Notice showed that Defendant claimed services were completed on 4/29/25, and the Vehicle was towed on 5/13/25. (Complaint ¶ 17; Iqbal Decl. ¶¶6-7). Defendant never provided any itemized invoice, work order, or owner authorization to Plaintiff. (Complaint ¶ 18; Iqbal Decl. ¶9).

On 12/5/25, Plaintiff filed this action against Defendant alleging causes of action for: (1) Claim and Delivery; (2) Violation of Civil Code 3068; (3) Violation of California Vehicle Code 10652.5; (4) Violation of Civil Code 3071; (5) Conversion and (6) Declaratory Relief. On 12/15/25, Defendant was personally served with the Summons and Complaint. (See Proof of Service filed 1/21/26).

On 2/9/26, default was entered against Defendant. On 5/12/26, Plaintiff filed and served the instant motion for entry of default judgment against Defendant.

ANALYSIS

A plaintiff may seek default judgment if: (1) a defendant fails to answer a complaint despite being properly served; and (2) default has been entered against the defendant. CCP 585(b). In order to obtain a default judgment, a plaintiff need only establish a prima facie case. Johnson (1999) 72 CA4th 357, 361. The court "shall hear the evidence offered by the plaintiff, and shall render judgment in plaintiff's favor for that relief, not exceeding the amount stated in the complaint, . . . as appears by the evidence to be just." CCP 585(b). The court may permit the use of affidavits, in lieu of personal testimony, as to all or any part of the evidence heard at the default judgment hearing. CCP 585(d).

In determining whether to enter default judgment, the court may accept all of the allegations of the Complaint as true. Bristol Convalescent Hospital (1968) 258 CA2d 848, 859; Los Angeles v. (1907) 150 Cal. 647, 649.

Plaintiff addresses its claims under the 1st, 2nd, 3rd, 4th and 6th causes of action and requests that the Court enter default judgment as follows:

1. Ordering

Defendant Alejandro Lezama Macias, DBA Macias Kustom Autobody, to immediately release the Vehicle (2018 Chevrolet Camaro ZL1, VIN 1G1FJ1R63J0167631, License Plate No. 8XIN236) to Plaintiff;

2. Declaring that Defendant's purported lien on the

Vehicle is void and unenforceable under California Civil Code §§ 3068, 3071, and Vehicle Code § 10652.5;

3. Declaring that Plaintiff owes Defendant no storage

charges, towing charges, or other fees in excess of any amounts lawfully permitted under California Civil Code § 3068 and Vehicle Code § 10652.5; and

4. For such other and further relief as the Court deems

just and proper.

Plaintiff has failed to establish that Defendant still has possession of the Vehicle so as to be able to immediately release the Vehicle to Plaintiff. The complaint and

Plaintiff's evidence acknowledge that on 10/10/25, Plaintiff received a Lien Sale Notice from the California Department of Motor Vehicles which reflected that Defendant's claimed repair costs of \$2,500.00, a daily storage rate of \$250.00, and a current storage balance of \$30,000.00. (See Complaint ¶¶16, 41, Ex.6; Cleff Decl. ¶7; Iqbal Decl. ¶6). The Lien Sale Notice provides that the Department of Motor Vehicles is required by law to issue the application to hold a lien sale of the Vehicle unless Plaintiff wishes to exercise its right to a court hearing to contest such action. (See Complaint, Ex.6). To exercise such right, Plaintiff was required to complete and sign the Declaration of Opposition included with the Lien Sale Notice and return it to the DMV within 10 days of the date of the notice. Id. There is no indication that Plaintiff returned the Declaration of Opposition. As such, it is possible that Defendant sold the Vehicle to a third party and cannot release the Vehicle to Plaintiff.

Also, if Defendant sold the Vehicle pursuant to Lien Sale, the issue of Defendant's lien on the Vehicle would be moot.

Additionally, the motion fails to address Plaintiff's claim for conversion and the request for monetary damages, including actual damages, punitive damages and attorneys' fees as permitted by law requested in the complaint. (See Complaint, Prayer ¶5).

Further, Plaintiff has not submitted a proposed Default Judgment. Only, a proposed order on the motion has been submitted.

CONCLUSION

The motion is denied without prejudice.